Draft for attorney review. Not legal advice.

Operating Agreement of a Single-Member New York Limited Liability Company

Effective on the later of the date the Company is formed and the date signed below.

1. The company

1.1 Name. The company's name is **[COMPANY NAME: Desk Drop LLC]** (the "**Company**").

1.2 Formation. The Company is formed under the New York Limited Liability Company Law (the "**LLC Law**") by filing Articles of Organization with the New York Department of State on [FILING DATE] (LLC Law section 203). This agreement takes effect when the Company is formed and not before (LLC Law section 417(c)).

1.3 Office and process. The Company's office is in [COUNTY] County, New York, as stated in the Articles. Its principal business address is [POSTAL ADDRESS]. The Articles designate the New York Secretary of State as the Company's agent for service of process, with process mailed to [ADDRESS FOR PROCESS]. [If used: The Company's registered agent is [REGISTERED AGENT NAME AND ADDRESS].]

1.4 Purpose. Any lawful business an LLC may carry on under the LLC Law. To begin with, the Company sells office placement campaigns to food and beverage brands and coordinates free product drops to participating offices.

1.5 Term. The Company continues until it is dissolved under section 13.

1.6 Publication. Within 120 days after the Articles take effect, the Member will have the Company publish the notice the LLC Law requires in two newspapers designated by the county clerk of the county in section 1.3, once a week for six successive weeks, and file the Certificate of Publication with the Department of State (LLC Law section 206).

2. The member

2.1 Sole member. [FOUNDER NAME] (the "**Member**") is the Company's only member and owns 100% of it, as listed in Schedule A.

2.2 Other activities. The Member may take part in other business activities.

3. Money in

3.1 Opening contribution. The Member contributes the amount in Schedule A.

3.2 No obligation to add more. The Member is not required to contribute more money or property, or to lend money to the Company. Any loan from the Member to the Company is recorded in writing, with its amount, date and repayment terms.

3.3 No interest on contributions. Contributions earn no interest and are returned only through distributions.

4. Tax treatment

4.1 Tax treatment. The Member intends the Company to have the default federal income tax treatment for a company with one member, under which it is disregarded as separate from the Member. The Company elects a different treatment (for example on IRS Form 8832) only by the Member's signed written decision, made after tax advice.

4.2 Fiscal year. The Company's fiscal year is the calendar year.

5. Money out

5.1 Distributions. The Member decides when the Company makes distributions.

5.2 Limit. The Company makes no distribution if, after it, the Company's liabilities would exceed the fair value of its assets (LLC Law section 508).

6. Running the company

6.1 Member-managed. The Company is managed by the Member, who has full authority to act for it, including signing contracts, opening and closing bank accounts, hiring and firing, buying insurance and filing with any government office.

6.2 Titles and delegation. The Member may use a business title such as "Founder" and may appoint others to act for the Company in writing, for a stated scope and time. Any appointment ends when the Member says so in writing.

6.3 Decisions in writing. The Company does not need to hold meetings or keep minutes. A written decision signed by the Member, on paper or electronically, is an act of the Company.

6.4 How the Company signs. Every contract is in the Company's name and signed by the Member for the Company, for example "[COMPANY NAME], by [FOUNDER NAME], Member".

7. Keeping the Company separate

The Company will:

- keep its own bank account and its own books, and pay its expenses from its own account;
- not mix its money with the Member's personal money;
- record every payment between the Company and the Member (contribution, loan, repayment or distribution);
- do business, sign contracts and send invoices in its own name, with its own taxpayer identification number;
- keep the records in section 9.

8. Liability and indemnification

8.1 Member's liability. The Member is not liable for the Company's debts, obligations or liabilities solely by reason of being its member (LLC Law section 609(a)).

8.2 Indemnification. The Company indemnifies the Member, and anyone the Member appoints under section 6.2, against claims, losses and reasonable expenses (including lawyers' fees) arising from acting for the Company, and may advance those expenses, to the full extent the LLC Law permits. It does not indemnify anyone where a final judgment establishes that the person's acts were committed in bad faith or were the result of active and deliberate dishonesty and were material to the claim, or that the person personally gained a financial profit or other advantage to which they were not legally entitled (LLC Law section 420).

8.3 Limit of the Company's obligation. Indemnification is paid only from the Company's assets and any insurance. The Member is not personally required to fund it.

9. Records

The Company keeps, at its principal business address or in a secure electronic folder: the Articles of Organization and any amendments; the Certificate of Publication with the newspapers' affidavits; this agreement, its schedules and every amendment and written decision; its federal, state and local tax returns and financial statements for the last six years; and its bank statements, invoices and contracts.

10. Transfers and new members

10.1 Transfers. The Member may transfer all or part of the Member's interest. Someone who receives an interest becomes a member only as section 10.2 provides.

10.2 New members. Anyone else becomes a member only by a written amendment signed by the Member and the new member. Before admitting a second member, the Company will adopt a new operating agreement for more than one member, because a second member changes the Company's tax treatment and governance.

11. Banking and money handling

The Company's money is kept in accounts in the Company's name. Only the Member, and anyone the Member authorizes in writing, may sign or approve payments.

12. If the Member dies or cannot act

12.1 Successor. The Member names [SUCCESSOR NAME, or "the Member's executor or other legal representative"] (the "**Successor**").

12.2 Death. If the Member dies, the Company does not dissolve. The Member's interest passes as the Member's will or New York law provides, and the Member's legal representative (or whoever receives the interest) is admitted as a member effective on the date of death, unless within 180 days after the death the legal representative decides in writing to dissolve the Company (LLC Law section 701(a)(4) allows the operating agreement to set this). Until then, the Successor may act for the Company within the limits in section 12.3.

12.3 Incapacity. If a physician states in writing that the Member cannot manage the Company's affairs, the Successor may act for the Company under section 6 until the Member can act again, but only to pay its bills, keep its insurance, honor or wind down its contracts and protect its assets. The Successor may not sell the Company or its assets, borrow, or admit members during that time.

13. Dissolution

13.1 When. The Company dissolves only (a) when the Member decides so in writing, (b) as section 12.2 provides, or (c) by court order under the LLC Law.

13.2 Winding up. On dissolution, the Member (or the Successor or legal representative) finishes or ends the Company's contracts, pays or provides for its debts, distributes what is left to the Member or the Member's estate, and files articles of dissolution with the Department of State (LLC Law section 705).

14. General terms

14.1 Governing law. New York law governs this agreement.

14.2 Amendments. This agreement changes only by a written amendment signed by the Member.

14.3 Whole agreement. This agreement and its schedules are the whole operating agreement of the Company.

14.4 Severability. If any part of this agreement is unenforceable, the rest stays in effect.

14.5 No third-party rights. This agreement is for the Member and the Company only. No creditor or other person may enforce it, including any promise in section 3.

Signed by the sole Member
Signature: _____ Date: _____
[FOUNDER NAME]

Schedule A · Member

Member	Mailing address	Opening contribution	Value	Interest	Date
[FOUNDER NAME]	[MEMBER MAILING ADDRESS]	[CASH, OR DESCRIBE PROPERTY]	$[AMOUNT]	100%	[DATE]

Schedule B · First written decision of the sole Member

Effective when the Company is formed, the Member decides that the Company:

1. Adopts this operating agreement.
2. Applies to the IRS for an employer identification number.
3. Opens a business bank account in its own name at [BANK], with the Member as the only signer.
4. Arranges publication and files the Certificate of Publication within 120 days after formation (section 1.6).
5. Adopts and ratifies everything the Member did for the Company before formation to organize it, including paying the filing fee of $[AMOUNT] and any formation service fee of $[AMOUNT], and will reimburse the Member $[TOTAL] from the Company's account, recorded under section 7.
6. Adopts every agreement the Member signed for the Company before formation, as of the date of formation, so that the Company takes the Member's place in each, including:

Agreement	Other party	Signed on
Office participation agreement	[COMPANY]	[DATE]
Office participation agreement	[COMPANY]	[DATE]
[ADD ROWS AS NEEDED]		

7. Will notify each other party in item 6 by email that the Company has taken over the agreement.

Signed by the sole Member
Signature: _____ Date: _____
[FOUNDER NAME], sole Member